

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2447

By: Fetgatter

AS INTRODUCED

An Act relating to revenue and taxation; providing income tax credit for certain qualified broadband telecommunications infrastructure; specifying amount of tax credit; prohibiting reduction of tax liability to less than zero; authorizing carryover; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2357.701 of Title 68, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Broadband telecommunications service" means any telecommunications service using broadband telecommunications infrastructure for the purpose of offering high speed, switched, broadband wireline or wireless terrestrial telecommunications capability that enables users to originate and receive high-quality voice, data, graphics, or video telecommunications through the Internet, using any technology, and, concerning wireline broadband

telecommunications service, having actual download speeds as defined by the Rural Broadband Expansion Council;

2. "Qualified broadband telecommunications infrastructure" means information equipment and facilities, information systems, and information technology used for the purpose of providing broadband telecommunications service; and

3. "Rural Broadband Expansion Council" means the entity created pursuant to the provisions of Section 139.202 of Title 17 of the Oklahoma Statutes.

B. For taxable years beginning after December 31, 2025, there shall be allowed as a credit against the tax imposed pursuant to Section 2355 of Title 68 of the Oklahoma Statutes in the amount of twenty-five percent (25%) of the cost for qualified broadband telecommunications infrastructure.

C. The tax credit authorized by this section may not be used to reduce the tax liability of the taxpayer to less than zero.

D. To the extent not used, the credit authorized by this section may be carried over, in order, to each of the five (5) subsequent tax years.

SECTION 2. This act shall become effective January 1, 2026.

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